

The Assam Backward Classes Commission Act, 1993

Source: <https://indiankanoon.org/doc/166921284/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

State of Assam - Act

The Assam Backward Classes Commission Act, 1993

ASSAM

India

The Assam Backward Classes Commission Act, 1993

Act 17 of 1993

Published on 4 November 1993

Commenced on 4 November 1993

[This is the version of this document from 4 November 1993.]

[Note: The original publication document is not available and this content could not be verified.]

The Assam Backward Classes Commission Act, 1993

(Assam Act

No. 17 of 1993

)

Last Updated 10th February, 2020

(Received the assent of the Governor on 4th November, 1993).

Preamble. - Whereas it is expedient to provide for the constitution of a Commission for Backward Classes other than the Scheduled Castes and Scheduled Tribes to streamline and rationalise the procedure for inclusion or over inclusion of any class or classes of citizens in the list of Backward Classes including More Other Backward Classes to provide reservation of vacancies in services and posts for the members of socially and economically backward sections of the society and for matters connected there with or incidental thereto.

It is hereby enacted in the Forty-fourth Year of the Republic of India as follows :

Chapter I

Preliminary

1.

Short title extent and commencement.

(1)

This Act may be called the Assam Backward Classes Commission Act, 1993.

(2)

It shall be deemed to have come into force on the 8th day of June, 1993.

(3)

It extends to the whole of the State of Assam.

2.

Definitions.

- In this Act unless the context otherwise requires :-

(a)

"Backward Classes" means such backward classes of citizens other than the Scheduled Castes and the Scheduled Tribes as may be specified by the State Government in the lists;

(b)

"Commission" means the Assam Backward Classes Commission constituted under Section 3;

(c)

"Government" means the Government of Assam;

(d)

"lists" means lists prepared by the Government from time to time for the purposes of making provision for the reservation of appointments or post in favour of backward classes of citizens which in the opinion of the Government are not adequately represented in the services under the Government and any local or other authority under the contract of the Government;

(e)

"member" means a member of the Commission and included the Chairperson;

(f)

"prescribed" means prescribed by the rules made under this Act;

(g)

"notification" means notification published in the Official Gazette.

Chapter II

The Assam Backward Classes Commission

3.

Constitution of the Commission.

(1)

The Government shall by notification, constitute a body to be known as the Assam Backward Classes Commission to exercise the powers conferred on, and to perform the functions assigned to it, under this Act.

(2)

The Commission shall consist of the following members nominated by the Government;

(a)

a Chairperson who is or has been a Judge of the Supreme Court or a High Court;

(b)

a Social Scientist;

(c)

two persons, who have special knowledge in matters relating to backward classes; and

(d)

a Member-Secretary, who is or has been an officer of the Government in the rank of a Secretary to the Government of Assam.

4.

Term of Officers and conditions of service of Chairperson and members.

(1)

Every member shall hold office for a term of three years from the date he assume office.

(2)

A member may, by writing under his hand addressed to the Government, resign from the office of the Chairperson, or as the case may be of member at any time.

(3)

The Government shall remove a person from the office of the members if that person-

(a)

becomes an undischarged insolvent; or

(b)

is convicted and sentenced to imprisonment for an offence which in the opinion of the Government, involves moral turpitude; or

(c)

becomes of unsound mind and stands so declared by a competent Court; or

(d)

refuses to act or becomes incapable of acting; or

(e)

is, without obtaining leave of absence from the Commission absents for three consecutive meetings of the Commission; or

(f)

has, in the opinion of the Government, so abused the position of Chairperson or members as to render that person's continuance in office detrimental to the interest of backward classes or the public interest:

Provided that no person shall be removed under this clause until that person has been given an opportunity of being heard in the matter.

(4)

A vacancy, caused under sub-section (2) or otherwise, shall be filled by fresh nomination.

(5)

The salaries and allowances payable to and other terms and condition of service of the Chairperson and members shall be such as may be prescribed.

5.

Officers and other employees of the Commission.

(1)

The Government shall provide the Commission with such officers and employees as may be necessary for the efficient performance of the functions of the Commission.

(2)

The salaries and allowances payable to and the other terms and conditions of service of the officers and other employees appointed for the purpose of the Commission shall be such as may be prescribed.

6.

Salaries and allowances to be paid out of grants.

- The salaries and allowances payable to the Chairperson and members and the administrative expenses, including salaries allowances and pension payable to the officers and other employees referred to in Section 5 shall be paid out of the grants referred to in sub-section (1) of Section 12.

7.

Vacancies etc. not to invalidate proceeding of the Commission.

- No act or proceeding of the Commission shall be invalid on the ground merely of the existence of any vacancy or defect in the constitution of the Commission.

8.

Procedure to be regulated by the Commission.

(1)

The Commission shall meet as and when necessary at such time and place as the Chairperson may think fit.

(2)

The Commission shall regulate its own procedure.

(3)

All orders and decisions of the Commission shall be authenticated by the Member-Secretary or any other officer of the Commission duly authorised by the Member-Secretary in this behalf.

Chapter III

Functions and Powers of the Commission

9.

Functions of the Commission.

(1)

The Commission shall examine requests for inclusion of any class of citizens as a backward class in the lists and hear complaints of over-inclusion or under-inclusion of any backward class in such lists and tender such advice to the Government as it deems appropriate.

(2)

The advice of the Commission shall ordinarily be binding upon the Government.

10.

Powers of Commission.

- The Commission shall, while performing its functions under sub-section (1) of Section 9, have all the powers of a civil Court trying a suit and in particular, in respect of the following matters, namely :

(a)

summoning and enforcing the attendance of any person from any part of Assam and examining him on oath;

(b)

requiring the discovery and production of any document;

(c)

receiving evidence on affidavits;

(d)

requisitioning any public record or copy thereof from any Court or office;

(e)

issuing commissions for the examination of witnesses and documents; and

(f)

any other matter which may be prescribed.

11.

Periodic revision of lists by the Government.

(1)

The Government may, at any time and shall at the expiration of ten years from the coming into force of this Act and every succeeding period of ten years thereafter, undertake revision of the lists with a view to excluding from such lists those classes who have ceased to be backward classes or for including in such lists new backward classes.

(2)

The Government shall, while undertaking any revision referred to in sub-section (1) consult the Commission.

Chapter IV

Finance, Account and Audit

12.

Grants by the Government.

(1)

The Government shall, after due appropriation made by Legislative Assembly by law in this behalf pay to the Commission by way of grants such sums of money as the Government may think fit for being utilised for the purpose of this Act.

(2)

The Commission may spend such sums as it think fit for performing the functions under this Act, and such sums shall be treated as expenditure payable out of the grants referred to in sub-section (1).

13.

Accounts and audit.

(1)

The Commission shall maintain proper accounts and other relevant records and prepare an annual statement of accounts in such form as may be prescribed by the Government in consultation with the Accountant General of Assam.

(2)

The accounts of the Commission shall be audited by the Accountant General at such intervals as may be specified by him and any expenditure incurred in connection with such audit shall be payable by the Commission to the Accountant General.

(3)

The Accountant General and any person appointed by him in connection with the audit of the accounts of the Commission under this Act shall have the same rights and privileges and the authority in connection with such audit as the Accountant General generally has in connection with the audit of Government accounts and, in particular shall have the right to demand the production of books, accounts, connected vouchers and other documents and papers and to inspect any of the offices of the Commission.

14.

Annual report.

- The Commission shall prepare, in such form and at such, time, for each financial year, as may be prescribed, its annual report, giving a full account of its activities during the previous financial year and forward a copy thereof to the Government.

15.

Annual report and audit report to be laid before the Assam Assembly.

- The Government shall cause the annual report together with a memorandum of action taken on the advice tendered by the Commission under Section 9 and the reasons for the non-acceptance, if any, of any such advice, and the audit report to be laid as soon as may be after they are received before Assam Legislative Assembly.

Chapter V

Miscellaneous

16.

Chairperson and members and employees of the Commission to be public servants.

- The Chairperson, members and employees of the Commission shall be deemed to be public servants within the meaning of Section 21 of the Indian Penal Code, 1860 (Central Act 45 of 1860).

17.

Power to make rules.

(1)

The Government may, by notification in the Official Gazette, make rules for carrying out the provisions of this Act.

(2)

In particular and without prejudice to the generality of the foregoing powers, such rules may provide for all or any of the following matters, namely :

(a)

salaries and allowances payable to and the other terms and conditions of service of the Chairperson and members under sub-section (5) of Section 4 and of officer and other employees under sub-section (2) of Section 5;

(b)

the form in which the annual statement of accounts shall be maintained under sub-section (1) of Section 13;

(c)

the form in and the time at which the annual report shall be prepared under Section 14;

(d)

any other matter which is required to be or may be prescribed.

(3)

Every rule made under this Act shall be laid as soon as may be after it is made, before the Legislative Assembly while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions; and if before the expiry of the session immediately following the session or the successive session aforesaid, the assembly agrees in making any modification in the rule or the Assembly agrees that the rule should not be made, the

rule shall thereafter have effect, only in such modified form or be of no effect, as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

18.

Power to remove difficulties.

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Government may, by order published in the Official Gazette, make provisions, not inconsistent with the provisions of this Act as appear to it to be necessary or expedient, for removing the difficulty.

(2)

Every order made under this section shall as soon as may be after it is made, be laid before the Assam Legislative Assembly.

19.

Repeal and saving.

(1)

The Assam Backward Classes Commission Ordinance, 1993 (Assam Ordinance No. 1 of 1993) is hereby repealed.

(2)

Notwithstanding such repeal anything done or any action taken under the said Ordinance, shall be deemed to have been done or taken under the corresponding provisions of this Act.

Related AI tags, queries and research notes

Translation